

Court No. - 3

Case :- WRIT - C No. - 15296 of 2022

Petitioner :- Smt. Kudusia Begum

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Mohammad Yaseen

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Mohammad Yaseen, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Narendra Kumar Tiwari, learned counsel for the respondent No.2. 3 and 4.

This writ petition has been filed praying for the following relief:

"i) To issue, a Writ, Order or direction in the nature of Certiorari Quashing the Impugned Recovery Citation dated 20/04/2022 issued by the Tehsildar, Tehsil Karchhana district Prayagraj in the name of Petitioner mentioning therein dues amount upon the Petitioner as 3,19,001 rupees plus other charges (Annexure No. 3 to this Writ Petition).

ii). To issue a Writ, Order or direction in the nature of Mandamus Commanding the Respondents to withdraw the aforesaid Impugned Recovery Citation dated 20/04/2022 issued by the Respondent No. 6/ Tehsildar, Tehsil Karchhana district Prayagraj in the name of Petitioner and not to take any coercive measures against the Petitioner in pursuance to the Impugned Recovery Citation dated 20/04/2022 issued by the Tehsildar, Tehsil Karchhana district Prayagraj."

Sri Narendra Kumar Tiwari, learned counsel for the respondent No.2. 3 and 4/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.5 of U.P. Electricity Supply Code, 2005** before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 7.7.2022

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